



INDIAN POLITY



ELECTION COMMISSION REPRESENTATION OF PEOPLE'S ACT, 1951



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MODULE – 99

DYNAMIC ASPECTS OF ELECTION COMMISSION

VOTING BEHAVIOUR

INDELIBLE INK

ELECTION OFFICERS

ELECTRONIC VOTING MACHINES

VOTER VERIFIABLE PAPER AUDIT TRAIL

SVEEP INITIATIVE

ELECTRONICALLY TRANSMITTED
POSTAL BALLOT SYSTEM

cVIGIL

SNAP ELECTION

PARTY SYMBOL ALLOCATION

PROXY VOTING IN INDIA

NOTA

“ONE NATION, ONE ELECTION”

REPRESENTATION OF PEOPLE ACT, 1951

CHANGING NATURE OF ELECTION

IMPORTANT PRACTICE QUESTIONS

MAINS GS PAPER – II
SALIENT FEATURES OF THE REPRESENTATION
OF PEOPLE'S ACT**1**

The electoral process of India is guided by the Representation of People Act, 1951. With the new emerging negative externalities in the electoral process, discuss the significance of RPA, 1951.

2

India is the largest democracy of the world based upon the right to vote and contest elections. In this context, critically analyze the challenges faced by the electoral process of India in contemporary times.

IMPORTANT PRACTICE QUESTIONS

MAINS GS PAPER – II
SALIENT FEATURES OF THE REPRESENTATION
OF PEOPLE'S ACT

- 3 *The outgoing Chief Election Commissioner, O.P. Rawat recently emphasized upon the need to reform the RPA, 1951 particularly, Section 77 and Section 126 of the RPA, 1951. What are the problems pertaining to these sections and how can it be resolved?*
- 4 *Explain Section 123 of Representation of People's Act 1951? Examine whether mass religious appeals for electoral gains can be categorised as a corrupt practice?*

ELECTION LAWS

**REPRESENTATION OF THE
PEOPLE ACT, 1950**

1 The **Representation of the People Act, 1950** did not contain all the provisions relating to elections but merely provided for the **allocation of seats and the delimitation of constituencies** for the purpose of elections to the House of People and Legislatures of States, the **qualifications of voter** at such election and the **preparations of electoral rolls**.

**REPRESENTATION OF THE
PEOPLE ACT, 1951**

2 The provisions for the **actual conduct of elections** to the Houses of Parliament and to the House or Houses of the Legislature of each State, the **qualifications and disqualifications** for the membership of these Houses, the **corrupt practices and other election offences**, and the **decision of election disputes** were all left to be made through **Representation of the People Act, 1951**.

ELECTION COMMISSION OF INDIA

ELECTION LAWS



DELIMITATION COMMISSION ACT OF 1952

Provides for the readjustment of seats, delimitation and reservation of territorial constituencies and other related matters.

THE PRESIDENTIAL AND VICE- PRESIDENTIAL ELECTION ACT, 1952

Provides for the conduct of Presidential and Vice- Presidential election and mechanism for the settlement of any dispute arising out of such elections.

ELECTION COMMISSION OF INDIA

ELECTION LAWS

DELIMITATION ACT, 2002



1 Articles 82 and 170 of the Constitution of India provide for readjustment and the division of each State into territorial constituencies.

2

Further, Articles 330 and 332 of the Constitution of India provide for re-fixing the number of seats reserved for the Scheduled Castes and the Scheduled Tribes in the House of the People and Legislative Assemblies.

3

The Delimitation Act, 2002, was enacted to set up a Delimitation Commission for the purpose of effecting delimitation on the basis of the 2001 census.

ELECTION COMMISSION OF INDIA

DELIMITATION COMMISSION

PROCEDURE AND POWERS OF THE COMMISSION

- Articles 82 and 170 of the Constitution of India provide for readjustment and the division of each State into territorial constituencies (Parliamentary constituencies and Assembly constituencies) on the basis of the 2001 census by such authority and in such manner as Parliament may, by law, determine.
- In India, Delimitation Commissions have been constituted **four times**- under the Delimitation Commission Acts of 1952, 1963, 1973, 2002.

- 1 The job of the Delimitation is to assign or fix limits of territorial constituencies having legislative body.
- 2 The Delimitation Commission in India is a high power body whose orders have the force of law and cannot be **called in question before any court**.
- 3 The Commission shall determine its own procedure and shall, in the performance of its functions, have all the **powers of a civil court** under the Code of Civil Procedure, 1908.
- 4 The copies of its orders **are laid before the House of the People and the State Legislative Assembly concerned**, but no modifications are permissible therein by them.

REPRESENTATION OF PEOPLE'S ACT, 1951

SECTION 8 OF RPA

WHAT THE REPRESENTATION OF THE PEOPLE ACT SAYS

SECTION 8(1) A person convicted for promoting enmity between different groups, rape, terrorist acts, insulting national flag etc stands disqualified for six years on mere conviction.

SECTION 8(2) A person convicted for hoarding, dowry offences etc. incurs disqualification if he is sentenced to at least six months for the offences. The bar continues for six years after release from jail.

SECTION 8(3) A person con-

victed of any other offence incurs disqualification if he is sentenced to an imprisonment of not less than two years. The disqualification continues till six years after release.

SECTION 8(4) Protects sitting MPs and MLAs from being disqualification under the above provisions. If they file an appeal within three months, they can continue as a member of the House till the completion of the term or till the decision on appeal, whichever is earlier.

WHY WAS SECTION 8 IN NEWS?

Supreme Court asked Parliament to frame laws to bar those accused of crimes from fighting election.

WHAT IS THIS SECTION ALL ABOUT?

Section 8 of the Representation of the People (RP) Act, 1951 disqualifies/bans convicted politicians from contesting elections.

REPRESENTATION OF PEOPLE'S ACT, 1951

SECTION 8 OF RPA

OBSERVATIONS MADE BY THE SC

- 1 Law-breakers cannot become law-makers
- 2 Strong law needed to 'cleanse politics'
- 3 **Right to know:**
The Court directed disclosure of criminal cases pending against the candidate by himself/herself to ECI and his/her political party.
- 4 **Wide publicity** of the criminal antecedents of the candidate.

- 5 In addition, both the candidate and parties were mandated to publish this information in *newspapers and TV at least three times after nomination papers were filed*
- 6 *Internal democracy, financial transparency and accountability* in the working of the political parties.

"Problem of criminalisation of politics is "not incurable" but requires urgent attention before it becomes "fatal to the democracy"!

REPRESENTATION OF PEOPLE'S ACT, 1951

SECTION 8(1) OF RPA

A person convicted of an offence punishable under certain acts of Indian Penal Code, Protection of Civil Rights Act 1955, Unlawful Activities (Prevention) Act 1967, Prevention of Corruption Act 1988, certain sections of the Prevention of Insults to National Honour Act, 1971 etc shall be disqualified.



SECTION 8(2) OF RPA

A person convicted for the contravention of

- i. Any law providing for the prevention of **hoarding or profiteering**; or
- ii. Any law relating to **the adulteration of food or drugs**; or (c) any provisions of the Dowry Prohibition Act, 1961

and sentenced to imprisonment for not less than six months, shall be disqualified from the date of such conviction and shall continue to be disqualified for a further period of six years since his release.



Pure



Adulterated

REPRESENTATION OF PEOPLE'S ACT, 1951

**SECTION 8(3) OF RPA**

A person convicted of any offence and sentenced to imprisonment for not less than two years [other than any offence referred to in Section 8(1) or Section 8(2)] shall be disqualified from the date of such conviction and shall continue to be disqualified for a further period of six years since his release.

SECTION 8(4) OF RPA

- A fourth subsection, i.e., 8(4) was struck down by the Supreme Court in 2013.
- This subsection had provisions for convicted lawmakers to retain their seats if they filed an appeal within 3 months of their conviction.

REPRESENTATION OF PEOPLE'S ACT, 1951

SECTION 33(7) OF RPA

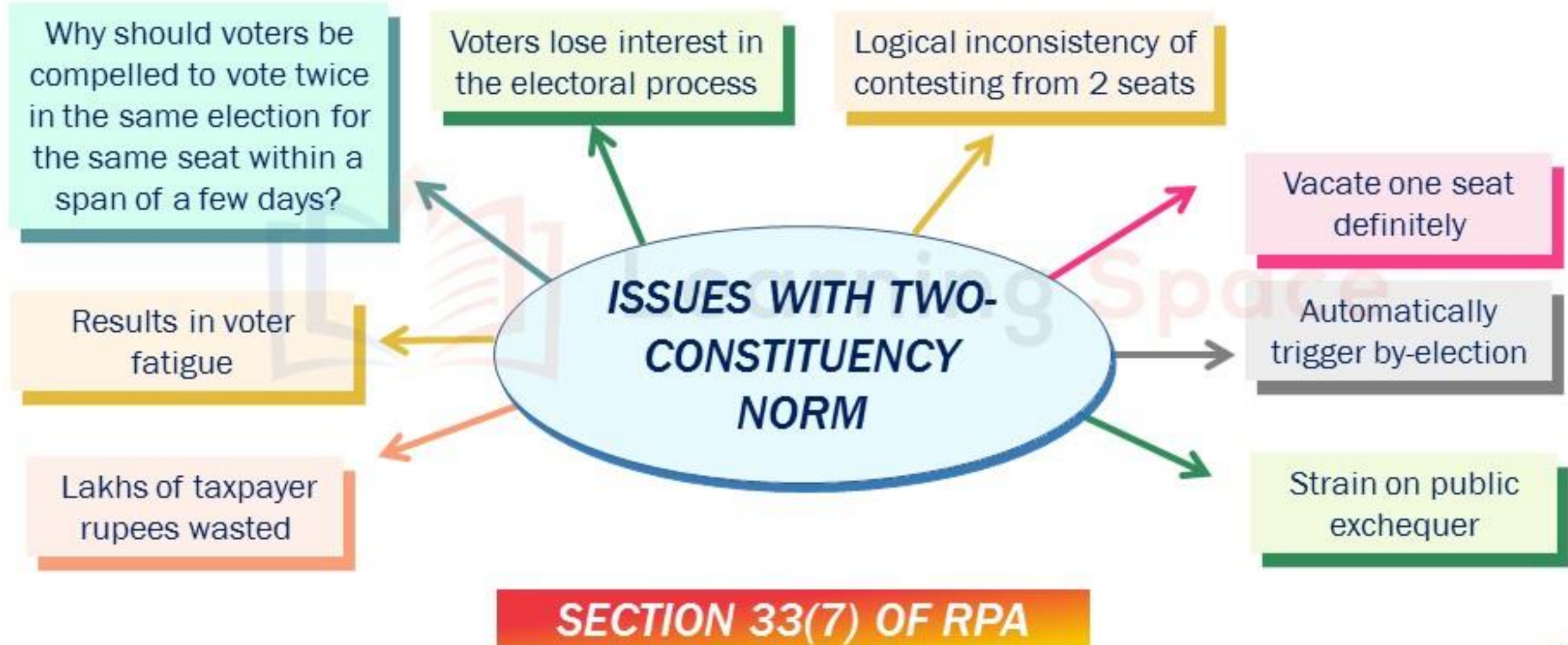


All of the above personalities took to contesting from more than one constituencies in Indian elections.

WHAT IS THIS SECTION ALL ABOUT?

- Section 33(7) of the Representation of People's Act permits a *candidate to contest any election from up to two constituencies*.
- The provision was introduced in 1996 prior to which there was no bar on the number of constituencies from which a candidate could contest.

REPRESENTATION OF PEOPLE'S ACT, 1951



REPRESENTATION OF PEOPLE'S ACT, 1951

SECTION 33(7) OF RPA

"ONE PERSON, ONE VOTE" & "ONE CANDIDATE, ONE CONSTITUENCY"**ARGUMENTS AGAINST TWO
CONSTITUENCY**

- When a candidate contests from two seats, it is imperative that he has to vacate one of the two seats if he wins both.
- This, apart from the consequent unavoidable financial burden on the public exchequer, government manpower and other resources for holding bye-election
- It is also an injustice to the voters of the constituency which the candidate is quitting from.

ALTERNATIVES GIVEN BY ECI

The ECI has alternatively suggested that if existing provisions are retained then the candidate contesting from two seats should bear the cost of the bye-election to the seat that the contestant decides to vacate in the event of his/her winning both seats.

LAW COMMISSION

In its 255th report, the Law Commission seconded the EC's recommendations, sparking further proposals by the EC to the SC on the issue of electoral reforms.

REPRESENTATION OF PEOPLE'S ACT, 1951

SECTION 75A OF RPA

DECLARATION OF ASSETS &
LIABILITIES

- Section 75A of RPA, 1951 states that every elected candidate for either houses of Parliament shall furnish information regarding relating to the movable and immovable property owned by him, his spouse or his children.
- Any willful contravention of such rules will be considered as a breach of privilege by the legislatures.

SECTION 77 OF RPA

ELECTION EXPENSES

- Every candidate contesting in election to the House of the People or to the Legislative Assembly of a State, shall, either by himself or by his election agent, keep a separate and correct account of all expenditure in connection with the election incurred or authorized by him or by his election agent.
- Currently the limits of expenditure are:
 1. **Lok Sabha elections:** maximum of 70 lakhs.
 2. **State assembly election:** maximum of 28 lakhs

REPRESENTATION OF PEOPLE'S ACT, 1951



SECTION 77 OF RPA

CONS OF THIS SECTION

- Even though Section 77 puts a ceiling on individual candidates, it puts no limit on the expenditure of political parties.
- This limitless expenditure by the parties makes it difficult for independent candidates to contest elections because they don't have money and muscle power.
- So, to provide a level playing field to all the candidates, it is necessary to control the money power in elections.

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